

an act or omission of an employee of the public entity where the employee is immune from liability.
Gov. Code § 815.2.

Plaintiff alleges in ¶ 4 that it is unclear whether Defendant Jody Morgan was acting in her capacity as a representative of Fall Valley, or outside of her capacity as a representative and that she is named in both capacities. To the extent that the Third Cause of Action is alleged against Defendant Jody Morgain in her individual capacity, the Third Cause of Action survives the Demurrer made on that basis. However, as to the remaining Defendants and Jody Morgan in her official capacity, the Demurrer is sustained and there will be no leave to amend.

Failure to Attach Contract. The First, Second, Fourth, and Fifth Causes of Action are all based in some form on the existence of a contract between the parties. Plaintiffs did not attach the contract or include any verbatim terms. Defendants argue that *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal. App. 3d 452, 459 holds that in all actions alleging a breach of contract, plaintiffs are required to attach the contract or allege verbatim its terms. Defendants cite to *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal. App. 4th 394, which reasoned that *Otworth* read more into a statement in *Wise v. Southern Pacific Co.* (1963) 223 Cal. App. 2d 50 than was there and declined to follow *Otworth*. *Otworth* is still good law and has not been overturned by the California Supreme Court. The Court will follow *Otworth* which specifically held that “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” *Otworth v. Southern Pac. Transportation Co.*, *supra* 166 Cal. App. 3d at p. 459. The Demurrer on the basis that Plaintiffs failed to attach the contract or state the verbatim terms is sustained with leave to amend. The most efficient manner in which Plaintiffs can remedy this deficiency is to attach the contract. Should Plaintiffs amend, the Court will be in a position to evaluate any claims by Defendants that Defendants Fall River Valley Fire Protections District is not a party to the contract.

Derivative Action. The Fifth Cause of Action for Declaratory Relief is derivative of the First, Second, and Fourth Causes of Action. For that reason, the same rulings above apply.

The Demurrer is sustained as to the First, Second, Third, Fourth, and Fifth Causes of Action. Leave to amend is granted with the exception of the Third Cause of Action as it relates to Defendant Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan in her official capacity. Plaintiffs are granted ten days leave to file a Second Amended Complaint. Rather than the Court modifying the proposed Order provided, Defendants shall provide an Order consistent with the Court’s ruling.

IN RE: KNIGHT

CASE NUMBER: 26CV-0211019

Tentative Ruling on Petition for Change of Name: Petitioner Noelle Knight seeks to change her name to Noelle Conger. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. Additionally, Petitioner checked Item 6 of the Petition, however, based on the rest of the Petition, this appears to be an error. Petitioner will be asked to clarify whether Item 6 was checked in error.

MCCLOSKEY VS. ALMA JEAN JACKSON TRUST & TRUST AGENT, ET AL.

CASE NUMBER: 25CV-0209075

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 30, 2026 to all parties and counsel for timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both require a party to file a Mandatory Settlement Conference no less than five court days prior to a Mandatory Settlement Conference, which in this matter, was scheduled for